

November 6, 2024

Via Electronic Mail

The Honorable Steven T. James
Clerk of the House of Representatives
State House, Room 145
Boston, MA 02133
House.clerk@mahouse.gov

**Re: Office of the Inspector General (OIG) Legislation for the 2025-2026 Session of
the General Court**

Dear Mr. James:

In compliance with Section 33 of Chapter 30 of the Massachusetts General Laws, as Inspector General, I respectfully submit six legislative proposals for the 2025-2026 session of the General Court.

- 1) The first proposal, *An Act updating Chapter 30B*, would equalize the price thresholds in the Uniform Procurement Act. Currently, based upon a recent change in the law, school districts are permitted to seek three written quotations for procurements up to, but not exceeding, \$100,000, rather than following the competitive sealed bidding process. This bill would allow the same threshold and practice to occur for the municipal side of government. The proposal also increases the sound business practice threshold to \$15,000 and allows the use of a request for proposals for procurements of \$100,000 or less in Chapter 30B.
- 2) The second proposal, *An Act relative to snow hauling and removal*, adds snow hauling and snow removal services to Chapter 30B's exemption for snow plowing.
- 3) The third proposal, *An Act relative to electric vehicles and charging infrastructure*, allows a single procurement method for electric vehicles, including school buses and their charging infrastructure under Chapter 30B. Currently, the procurement of electric vehicles and their charging infrastructure are separate procurements.
- 4) The fourth proposal, *An Act relative to retail electricity suppliers*, strengthens the enforcement mechanisms and bolsters surety requirements for Retail Electricity Suppliers (RES). The OIG reviewed RES programs and found that enforcement gaps in the programs prevented the Commonwealth from recouping millions of dollars that suppliers owed to the state.
- 5) The fifth proposal, *An Act relative to county land disposition*, clarifies the process that county governments must take when disposing of real property. The proposal requires county governments to offer, in writing, surplus property to the Division of Capital

Asset Management and Maintenance, who shall then inquire of other state agencies whether they have use for the property.

- 6) The sixth proposal, *An Act creating the Office of the Inspector General Recovery Fund*, creates a non-budgeted special revenue fund under Chapter 29 and would replace the OIG's current expendable trust fund.

Thank you for your attention to this matter. Please feel free to contact Joshua Giles, Director of Government Outreach and Public Policy at Joshua.Giles@mass.gov or 617-722-8828 or me at Jeffrey.S.Shapiro@mass.gov or 617-722-8806 if you have any questions or concerns.

Sincerely,



Jeffrey S. Shapiro, Esq., CIG
Inspector General

cc (by email):

Joshua Giles, Director, Government Outreach and Public Policy, OIG
Nataliya Urciuoli, Senior Executive Assistant, OIG